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No. 38

COLLECTION

LAW & REGULATIONS

Home and Title Insurance

Protect yourself when buying.



2026 EDITION

BEFORE YOU BEGIN

Important notice

This guide is provided for informational and educational purposes only. It presents general information about real estate in Quebec and does not constitute personalized real estate, legal, tax or financial advice. Every real estate situation is different, and you should consult the appropriate professionals before making a decision about a transaction.

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COLLECTION QUEBEC & LEGAL · GUIDE NO. 38

Home and title insurance

Protecting yourself well — the insurance to know when buying

Two insurance policies protect your purchase from different angles: home insurance (against losses) and title insurance (against legal problems related to the property). Understanding them means avoiding costly protection gaps.

This guide explains both, what they cover, and why they matter.

Informative content. Each chapter ends with a lined “My Notes” page.

Two insurances protect your purchase from different angles: home (against losses) and titles (against legal problems). This guide explains both, how to shop wisely and how to respond after a disaster.

Understanding them means avoiding costly protection holes.

CHAPTER

Home insurance

> *Protect the building and your property.*

Home insurance covers your property and belongings against risks such as fire, water damage or theft, and includes **civil liability** (damage caused to others).

It must be in force **upon taking possession** - lenders require it before disbursing the mortgage. Take the time to check:

- The **protections** included and the **exclusions**.
- The amount of **franchises**.
- Situations that influence insurability (oil tank, aged roof, flood-prone area).

Home insurance covers the property and your belongings (fire, water damage, theft) and includes civil liability. It must be active upon taking possession - lenders require it. Check protections, exclusions and deductibles, and report any element that complicates insurability (oil tank, aged roof, flood-prone area).

> EMILIE'S ADVICE
>
> *Obtain your insurance quote as soon as the promise to purchase is accepted. A property that is difficult to insure, it is better to discover it before signing than after.*

CHAPTER

Title insurance

> *Protect yourself from legal problems.*

Title insurance is different: it protects against certain **title issues** rather than against material losses.

- Title defect or undetected irregularity.
- Encroachment or non-compliance.
- Real estate fraud.

It can sometimes replace or supplement a recent certificate of location, depending on the case. This is one-off protection (single premium) often offered by the notary upon signing.

Title insurance protects against legal title problems: title defect, encroachment, non-compliance, fraud. This is one-off protection (single bonus), often offered by the notary, who can sometimes supplement a certificate of location depending on the case.

> EMILIE'S ADVICE
>
> *Title insurance is not required, but for a few hundred dollars one time, it can save you from costly litigation. Ask your notary if it is relevant in your case.*

CHAPTER

Two additional protections

> *Combine covers intelligently.*

The two insurances do not replace each other: they cover different angles.

- **Housing** : claims and liability - mandatory for the lender.
- **Titles** : legal property issues - optional but often useful.

The objective: that no significant risk is left uncovered. Also consider reassessing your coverage after major renovations that increase the value of the property.

The two do not replace each other: the home covers losses (obligatory for the lender), the titles cover the legal (optional but useful). The objective: that no significant risk remains uncovered. Reevaluate your coverage after major renovations.

> EMILIE'S ADVICE
>
> *List what each insurance covers, side by side. You'll immediately see if there's a "gap" between the two - and that's exactly where the nasty surprises lurk.*

CHAPTER

Shop carefully for your home insurance

> *Pay the right price for the right protection.*

Premiums vary greatly from one insurer to another for similar coverage. Some reflexes:

- Compare **multiple submissions** for equivalent protection.
- Adjust the **franchise** : higher, it reduces the premium (but increases your share in the event of a claim).
- Take advantage of **discounts** (self-housing group, alarm system, non-smoking).
- Honestly declare **risks** : an omission may void coverage.

The cheapest protection is only useful if it covers what you really need.

Premiums vary a lot for similar coverage: compare several quotes, adjust the deductible, take advantage of discounts (consolidation, alarm) and honestly declare the risks (an omission can void coverage). The cheapest one is only useful if it covers what you need.

> EMILIE'S ADVICE
>
> *Don’t choose your insurance based on price alone. A deductible that is too high “to save money” can cost you dearly in the event of water damage. Look at the protection before the price.*

CHAPTER

After a disaster: react without stress

> *Know what to do when the time comes.*

Good preparation makes a disaster much less painful:

1. **Secure** the premises and limit the damage (turn off the water, for example).
2. **Document** : photos, videos, list of affected assets.
3. **Notify** quickly your insurer.
4. Keep the **received** of the expenses incurred.

An up-to-date inventory of your goods (photos, invoices) greatly speeds up payment. Do it once, with a clear head, before you need it.

After a disaster: secure the premises, document (photos, videos, list), quickly notify the insurer and keep the receipts. An up-to-date inventory of your belongings greatly speeds up payment - film a tour of your home once a year, drawers open, before you need it.

> EMILIE'S ADVICE
>
> *Once a year, film a tour of your home, drawers and cupboards open. In the event of a disaster, this video is worth a thousand forms to prove what you owned.*

IN PRACTICE

Action plan

> *Your next steps, concretely.*

This week

1. Obtain a home insurance quote.
2. Check any element complicating insurability.

Within 30 days

1. Discuss title insurance with the notary.
2. Make sure there are no protection holes.

Then

1. Reassess your insurance after renovations.

To do

1. Obtain a home insurance quote as soon as the promise is accepted.
2. Discuss title insurance with the notary and check that no risk is left uncovered.

REFERENCES

Resources & glossary

- Home insurance: covers losses and liability, mandatory for the lender.
- Title Insurance: Covers legal issues related to ownership.
- Excess: amount payable by you in the event of a claim.
- Insurability: ease of insuring depending on the condition and risks of the property.
- Civil liability: protection in the event of damage caused to others.

- Home insurance: covers losses and liability, required by the lender.
- Title Insurance: Covers legal issues related to ownership.
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GO FURTHER

Quiz - test yourself

1. Home insurance covers:

A) Title issues
B) Claims and civil liability
C) The welcome tax
D) The notary

2. It must be in force:

A) One year after purchase
B) Upon taking possession
C) Never
D) Only for condos

3. Title insurance protects against:

A) The fire
B) Legal issues related to ownership
C) Theft
D) Taxes

4. Title insurance is:

A) Mandatory
B) Optional but often useful
C) Prohibited
D) Free

5. The two insurances:

A) Replace each other
B) Cover different angles and complement each other
C) Are identical
D) Are useless

6. After major renovations, you must:

A) Do nothing
B) Reassess your insurance
C) Terminate
D) Pay a fine

7. A higher deductible:

A) Increase the premium
B) Reduces the premium but increases your share of the claim
C) Has no effect
D) Is illegal

8. Failing to report a risk may:

A) Reduce the risk-free premium
B) Cancel coverage
C) Double the protection
D) Be required

9. After a disaster, we must first:

A) Throw everything away
B) Secure the premises and document the damage
C) Wait a year
D) Sell the house

10. To speed up a settlement, it is useful to have:

A) No documents
B) An up-to-date inventory (photos, invoices)
C) A new notary
D) A larger mortgage

Answers

1. B - Losses and liability (chap. 1).
2. B - Required by the lender upon possession (chap. 1).
3. B - Defect of title, fraud, encroachment (chap. 2).
4. B - Optional, single premium (chap. 2).
5. B - Complementary (chap. 3).
6. B - The value changes (chap. 3).
7. B - Premium/deductible arbitration (chap. 4).
8. B - Report honestly (chap. 4).
9. B - Secure then document (chap. 5).
10. B - Prior inventory (chap. 5).

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You now have the right keys in hand.

Every real estate journey is different.

If you would like to go further,
I would be happy to discuss
your project with you.



Make informed decisions.
Choose with confidence.
Live without regrets.
See you soon,
Emilie ☺

Emilie Cauvier

RESIDENTIAL & COMMERCIAL
REAL ESTATE BROKER

(514) 774-9818

emilie@equipecauvier.com

guidesimmoquebec.com